

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA,
SITTING IN ITS MARCH TERM, A. D. 2025.

BEFORE HER HONOR: SIE-A-NYENE G. YUOH CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA ASSOCIATE JUSTICE
BEFORE HIS HONOR : YAMIE QUIQUI GBEISAY, SR ASSOCIATE JUSTICE
BEFORE HER HONOR: CEANEH D. CLIN TON-JOHNSON... ASSOCIATE JUSTICE

The Citizens of Du-Wollee Township, Matroe Chiefdom, Sinoe)
County, Republic of Liberia, by and thru their representatives,)
Chairman, Elder Council, Commissioner, presidents youth)
Council women organization, and all other persons, acting for)
And on behalf of the said Township of Sinoe County, the)
Republic of Liberia.....Appellants)

APPEAL

VERSUS

The Citizens of Worteh Clan, Worteh Township, Kpanyan)
Statutory District, Sinoe County, Republic of Liberia, by)
And thru their representatives, Messrs Wleh Doe Blamo,)
Chairman, Monrovia office, Peter N. Jerbo, Township)
Commissioner, T. Kelley Johnson, chairperson, Elder Council)
Jefferson Sneh, president, Youth council and Mme. Mane)
Kugmeh, chairlady women organization and all other)
Citizens of said Township..... Appellees)

GROWING OUT OF THE CASE:

The Citizens of Worteh Clan, Worteh Township, Kpanyan)
Statutory District, Sinoe County, Republic of Liberia, by)
And thru their representatives, Messrs Wleh Doe Blamo,)
Chairman, Monrovia office, Peter N. Jerbo, Township)
Commissioner, T. Kelley Johnson, chairperson, Elder Council)
Jefferson Sneh, president, Youth council and Mme. Mane)
Kugmeh, chairlady women organization and all other)
Citizens of said Township..... Petitioners)

VERSUS

PETITION FOR
DECLARATORY
JUDGMENT

The Citizens of Du-Wollee Township, Matroe Chiefdom, Sinoe)
County, Republic of Liberia, by and thru their representatives,)
Chairman, Elder Council, Commissioner, presidents youth)
Council women organization, and all other persons, acting for)
And on behalf of the said Township of Sinoe County, the)
Republic of Liberia..... 1ST respondent)

And

The Ministry of Internal Affairs, by and thru the Ministry of)
Justice of the Republic of Liberia.....2nd Respondent)

And

Golden Veroleum Liberia by and thru all of its Executive)
Officers to include its Board of Directors, comptroller and)
All persons acting directly and indirectly under)
Their control 3rd Respondent)

Heard: November 19, 2024

Decided: May 29, 2025

MR. JUSTICE KABA DELIVERED THE OPINION OF THE COURT

Pursuant to the Civil Procedure Law Rev. Code: 1:43.2, the petitioners/appellees, the Citizens of Worteh Clan, filed a fourteen counts Petition for Declaratory Judgment against the 1st respondent/appellant, the citizens of Due-Wollee Township, the 2nd respondent, the Ministry of Internal Affairs, and the 3rd respondent, the Golden Voroleum Liberia, alleging substantially that they are citizens of the Worteh Clan, Worteh Township, Kpanyan statutory District, Sinoe County, Republic of Liberia; that by virtue of aboriginal grant deed issued by the Government of Liberia over the signature of President of Edwin J. Barclay in 1930, the appellee were granted 7,654.91 acres of land lying and situated in the Worteh Clan, Worteh Township, Kpanyan Statutory District, Sinoe County, Republic of Liberia; that despite this conveyance, current Government of Liberia are attempting to abrogate and nullify the action of its predecessors governments and are usurping the judicial authority by recognizing the appellants as the owner of the property so conveyed to the appellees and that the appellants have entered into an agreement with Golden Vereloum for the said parcel of land and has alienated the appellees' property without the will and consent of the appellees; that the trial court declare the act of the government to award the appellees' property to the appellants without due process of law as a violation of the constitutional right of the appellees to own property and that such property cannot be alienated except by a hearing judgment consistent with due process of law.

In its returns, the appellant averred that in exercising its constitutional authority, the Legislature, on July 23, 1977, passed an Act entitled: "An Act to Incorporate the Du-wollee Township within the Mateo/Nemo Chiefdom, Sinoe County, Republic of Liberia"; that from and immediately after the passage of this act, all of the part or parcel of land being and lying within the area comprising the Blue Barrel and Wolee Clans, Matro Nemo Chiefdom, Sinoe County, Republic of Liberia, occupied by the appellants belong to the appellant; and that the court cannot declare the Act of the Legislature of 1977 illegal in 2017. The appellant further averred that on December 21, 1964, the Legislature passed an Act named and styled "An

Act to Incorporate the Township of Worteh, Matro Chiefdom, Sinoe River, Subo District, Sinoe County, Republic of Liberia"; that the said act gives a complete description of the Metes and bounds of Worteh Township; that since the passage of these two Acts in 1964 and 1977, creating both Townships, the same have never been challenged by the appellees or any person or group of people. Appellant also averred that the Ministry of Internal Affairs was only implementing the Acts passed by the Legislature in 1964 and 1977; that on March 12, 2015, the people of Du-wollee and Worteh Townships signed a joint Resolution in which both Townships decided to respect the boundaries of each Township as spelled out in the Act of the Legislature creating their respective Townships; that the passage of the 1977 act was predicated on the constant harassment, threats, and intimidation of the people of Duewollee by the people of Worteh Township; that predicated upon their ownership of a parcel of land conferred by various Acts of the National Legislature and the Joint Resolution, the appellant, on June 11, 2016, executed a memorandum of understanding-contract with the Golden Veroleum Liberia (GVL); that under the said MOU-C, the appellant ceded to GVL 1,449 hectares or 3,579.03 acres of land to cultivate and develop same into an oil palm plantation.

In its reply, the petitioner/appellee averred that the instrument purporting to be an Act of Legislature for the establishment of Appellant's Township is false because the said Act was never published into a hand bill to give it binding effect; that assuming the instrument is anything to be accepted as being true, President Edwin J. Barclay, after having transferred title to the said property to the appellees in 1930 and the appellees right to the property recognized by successive governments over the last almost 100 years, the Legislature cannot legitimately deprive the appellees of ownership of the said property in 1977 without the appellees' deed of 1930 being judicially revoke or cancelled; that the 1964 Act referred to by the appellants did not incorporate the Township of Worteh, Matro chiefdom, Sinoe River, Subo District, Sinoe County; Republic of Liberia as is apparent on the face of the said Act; and that the fact that the appellees have allowed the appellants to reside on certain portion of their land for a period of years, does not ripen the appellants' stay into title; that the appellees were never given a specific land by the Government and where the

appellants are at presently is just an accommodation and good will on the part of the appellees; that the signing of an alleged joint resolution by the parties does not give the appellants title to land owned by the appellees because the intent of the said resolution was to ensure and enable the parties to live in a peaceful atmosphere with the aim of undertaking joint project, especially one involving investment by a foreign company in their districts; that the resolution referred to herein specifically provided that each township boundaries shall be established and the metes and bounds shall be identified, and that the parties would identify land separately to be offered for development purposes by GVL through the FPIC process; that the appellees challenge the outcome of the survey conducted by the government of Liberia through the ministry of Internal Affairs to satisfy the agreement consummated by and between the appellant and Golden Veroleum in that the appellants did not produce any deed to justify their claims of ownership of land in the area covered by the Memorandum of Understanding. Finally, the appellees urged that declaratory judgment would lie to give effect to the aborigines grant issued to the appellee by the Government of Liberia in 1930.

After pleading rested, the records show that the appellees filed a bill of information, bringing to the court's attention that while the petition for declaratory judgment was pending, Golden Veroleum, one of the respondents in the main suit, carried out massive clearing of the property in question to the detriment of the appellees. The appellees, therefore, pray that the court stay all such activities pending the outcome of the case. Golden Veroleum filed a return, praying that the court would deny and dismiss the bill of information.

After hearing the Petition for Declaratory Judgment and the returns thereto, the trial court rendered its final ruling on March 14, 2019, declaring the rights of the appellees to all the disputed areas covered by the agreement between the appellants and Golden Veroleum. In its ruling, the court determined that under property law, the deed in possession of the appellees which has not been revoked or canceled is evidence of title to the property described therein; that the creation of a township cannot cancel title to real property; that the fact that the creation of a township

cannot cancel or revoke a title deed does not invalidate the act passed by the legislature in 1977; that declaratory judgment cannot be used to evict party illegally occupying real property; and finally that in the instant case, declaratory judgment will lie.

To this trial judge's ruling, the appellant entered exceptions and announced an appeal to this Court, followed by the perfection of its appeal in line with the Civil Procedure Law Rev. Code 1:51.4.

In its bill of exceptions, the appellants substantially averred that the trial judge committed reversible error when he admitted the aborigines' deed granted to the appellees by the Government of Liberia in 1930 without taking into consideration the Hinterland regulation of 1905, especially that portion which provides that *"the right and title of the respective tribes to land of an adequate area for farming and other enterprises essential to the necessities of the tribe remain interest in the tribe to be utilized by them for these purposes; and whether or not they have procured deed from government, delimiting by notes and bonds such reserves, their right and interest in and to such areas, are a perfect reserve. Additionally, the law further stated that should the tribe become sufficiently advanced in the arts of civilization, they may petition the government for a division of the land into family holdings in which even the government will grant in fee simple to each family for an area of 25 acres; that the trial judge failed to take into consideration the revised rules and regulations governing the Hinterland of 2001 especially article 66 subparagraph (c) and (d) which states that: the trustee, however, cannot pass any fee simple title in the hands of any person whatever; should the tribe become sufficiently advanced in the arts of civilization, they may petition the Government for a division of the land into family holdings in which even the Government will grant deeds in fee simple to each family for an area of 25 acres in keeping with poison of 1905; that the trial judge erred when he based his ruling on the alleged deed granted in fee simple but ignored the Acts promulgated by the Government of Liberia creating the Du-Wollee township and the act incorporating the Township of Worteh Township "An Act to Incorporate the Township of Worteh, Mantra Chiefdom, Sinoe River, Subu District, Sinoe County, Republic of Liberia".*

Given due consideration to the parties' pleading, the trial judge's final ruling, the appellant's bill of exceptions, and the briefs filed by the parties, the issues that are determinative of this matter are:

Whether the trial judge erred when he gave credence to the appellees' 1930 Aborigines deed in the face of the 1905 hinterland regulations and the revised 2001 hinterland regulations?

Whether the trial judge erred when he failed to consider the legislative act of 1964 creating the township of Worteh and the act of 1977 creating the Due-wolle when determining the declaratory judgment in favor of the appellees.

Will declaratory judgment lie in the instant case?

We will now examine these issues in the order in which they are presented.

To address the first issue, we take due cognizance of the Hinterland Regulation of 1905 and the Revised Regulation of 2001. We note that neither of these two regulations, in any manner, shape, or form, negates the title instrument issued by the government of Liberia to the appellees. The Aborigines' deed of 1930 granted to the appellees is, as a matter of fact, in apparent conformity with the provisions of the 1905 Hinterland Regulation. The government deeded and granted the property to the people of Worteh Clan. The purpose of the grant, as clearly spelled out on the deed, is to "induce aborigines of the country to adopt civilization and become loyal citizens of the Republic", and it was in recognition of the people of Worteh Town "showing themselves fit to be entrusted the rights and duties of full (citizenship) as voters..." clearly this instrument is in line with the 1905 regulation. The 1930 Aborigines Deed is also not in violation of the 2001 revised hinterland regulation in that nowhere on the face of the said instrument is it apparent or implied that the property granted under the 1930 deed was distributed amongst the Citizens of Worteh Clan without complying with the prescription for distribution as contained in the 2001

revised regulation. Therefore, we find that the appellants' exceptions in this regard are unmeritorious.

Regarding the second issue, this Court fully supports the trial judge's holding that the creation of a township and the conferral of title by the Government are not incompatible actions since a title instrument conveys ownership of and rights to real property, while the creation of a township confers upon citizens of that locality the political right of governance. Granting the right to govern in no way deprives legitimate title holders of their property without due process of law. The Government of Liberia, having issued an Aborigines Deed to the appellees in 1930, the subsequent creation of a township by the government in 1977, does not invalidate the appellees' title to their property conveyed in 1930. Hence, this exception of the appellant is unmeritorious.

Regarding the third issue, our Civil Procedural Law provides in section 43.1 that courts of record within their respective jurisdictions shall have the power to declare rights, status, and other legal relations, whether or not further relief is or could be claimed. No action or proceeding shall be open to objection on the ground that a declaratory judgment is prayed for. The declaration may be either affirmative or negative in form and effect, and such declarations shall have the force and effect of a final judgment. In the case *Gbartoe et al. v. Washington* 41 LLR 117 (2002), this Court held that the sole object of a declaratory judgment is to declare rights, status, and other legal relations, whether or not further relief is or could be claimed. The Civil Procedure Law Rev. Code 1:43.2 also provides that any person interested under a deed, will, written contract, or other writing constituting a contract or whose rights, status, or other legal relations are affected by a statute, municipal ordinance, contract, or franchise, may have determined any question of construction or validity arising under the instrument, statute, ordinance, contract, or franchise, and obtain a declaration of right, status or other legal relations thereunder.

In the instant case, the issue presented to the lower court by the appellees is for a declaratory judgment regarding their rights and status under an Aborigines Grant Deed issued to them by the government of the Republic

of Liberia in 1930, specifically several legislative acts incorporating townships covering the area of the questioned property. The trial court was properly situated to inquire into and declare the rights and status of the parties in relation to the 1930 Aborigines Deed and the two Acts of the legislature of 1964 and 1977. This declaration in no manner or form touches on the validity of the two Acts referenced herein. The declaration is that the existence of those two acts has no bearing on the validity of the title instruments granted to the appellees herein.

WHEREFORE AND IN VIEW OF THE FOREGOING, the trial court's final ruling declaring the appellees' rights to the land conveyed under the Aborigines' Deed of 1930 is hereby affirmed. The Clerk of this Court is hereby ordered to send a Mandate to the court below, commanding the judge presiding therein to resume jurisdiction and give effect to the Judgment of this Opinion. Costs ruled against the appellants. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLOR MARK M.M. MARVEY OF THE BEYOND LAW CHAMBERS APPEARED FOR THE APPELLANTS. COUNSELLOR MILTON D. TAYLOR OF THE LAW OFFICES OF TAYLOR AND ASSOCIATES, INC. APPEARED FOR THE APPELLEES.